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“We Need to Redefine What We Mean by Winning”: NAKASEC’s Immigrant Justice Activism and Thinking Citizenship Otherwise

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ABSTRACT

The National Korean American Services and Education Consortium (NAKASEC) is becoming an increasingly influential player in national immigrant justice worlds. This article traces NAKASEC’s evolving critique of legal recognition as the primary goal of immigrant justice work. Following organizers through a 22-day vigil at the White House, a 1700-mile bike tour, and the creation of a housing collective exclusively for illegalized people, I argue that NAKASEC’s call to “re-define what we mean by winning” speaks to an emergent conceptualization of citizenship outside state inclusion. What does immigrant justice work look like when legalization is not its central goal?

KEYWORDS

Immigrant rights; citizenship; liberal recognition; activism

The end goal is not that we’re fighting for citizenship, you know? Because citizenship is something, but it’s not everything. Black Americans have citizenship, but they’re still getting killed by the police. Like if our lives are still valueless regardless of a piece of paper, or a Green Card, then it doesn’t really mean anything. So I guess like the end goal is to achieve social equity or social justice. When we can like, you know, dismantle all these institutional barriers and build other bridges. I think that’s what we’re trying to achieve. Not to like become part of the society where people can value us because we look like them or because we act like they want us to act.

– Stella, an illegalized NAKASEC organizer.

Stella’s words speak to a conviction that immigrant justice work predicated solely on seeking formal legal recognition will always be incomplete, and that other forms of resistance are necessary for seeking truly intersectional immigrant justice. Scholars and activists have theorized the limitation of activism focused exclusively on demanding full citizenship or equal access rights, arguing that to demand state inclusion is to only embolden the hegemonic power structures radical activists seek to dismantle.¹ Eric Tang writes that Asian American activists thus require a “new politics of dissent” that refuses the false promises of inclusion upon which liberal rights regimes rely. Such dissent scorns aspirations for participation in, and “exposes and creatively disrupts the working of arbitrary power”² that operates through assigning racialized and immigrant minorities to ever-shifting categories of good and bad, criminal and innocent, worthy and undeserving. In this article, I explore how organizers in the National Korean American Services

and Education Consortium (NAKASEC) are yearning to develop such alternative politics of dissent as they argue that maneuvering solely within the bounds of legalization and inclusion-oriented immigrant rights activism constricts broader imaginations of truly intersectional immigrant and racial justice. I show how in working within and without of the traditional rights and inclusion-based parameters in which anti-immigrant struggles are often fought, they are developing a means of resisting immigrant injustice otherwise. These “otherwise” projects embrace the material benefits legalization offers, yet envision and actively build spaces for immigrant liberation outside the confines of state recognition.

A growing frustration with political unwillingness to devise immigrant legislation outside the logic of uplifting a perceived deserving group of immigrants to criminalize all others has motivated NAKASEC organizers to implement alternative liberation projects over the past several years. For instance, the readiness with which legislators have used so-called Dreamers as pawns in larger political games and a growing awareness of the arbitrariness with which authorities exercise power within our immigration legal system create a sense that working through the state presents only an illusion of a negotiation.³ Hyun Shik, a NAKASEC organizer said to me that he and his colleagues sense that it’s no longer viable to “play within the institution, and to play their [politicians] game.” He added that the long fight for the DREAM Act⁴ made them realize that “even those we considered to be on our side at the end of the day work for their own self-interest . . . there is certainly a limit to what they can do, and we cannot put our lives on their shoulders.” Another organizer named Betsy added, “we need to redefine what we mean by winning. It can include papers, but it can’t be just that.” To tie victory to state recognition is to only fortify the power it wields over immigrant lives.

But if not immigration papers, then what? This article follows NAKASEC organizers as they imagine and enact visions for immigrant liberation outside the parameters of rights-oriented goals. It explores this process through several projects the organizers designed and implemented from 2017 through 2019: A 22-day vigil in front of the White House, a 1700-mile bike tour from Seattle to San Diego, and the creation of a housing collective exclusively for illegalized⁵ people. In looking to these programs, the point is not to argue that NAKASEC has abandoned all legislative projects that would materially improve the lives of their constituents in a significant way. They no longer center DREAM Act activism in their work, but they do not deny the limited yet substantial benefits that could accrue to the millions of illegalized and otherwise legally liminal immigrants in the U.S. To appreciate how NAKASEC organizers carry out these projects, even as they continue to partially maneuver within rights-based parameters requires framing radical and inclusionary immigrant politics as relational, rather than necessarily oppositional to one another.⁶ It also requires thinking broadly about what constitutes an act of resistance.⁷ Looking solely to NAKASEC organizers’ discursive and material practices as they engage in formal political processes⁸ is to miss where some of the most meaningful and innovative work is being done.

Methodology

The following observations emerge from two years of ethnographic fieldwork (2017–2019) with current and former NAKASEC staff, volunteers, board members, and representatives

from ally organizations. That I began my fieldwork in the summer of 2017 is somewhat fortuitous in that several NAKASEC organizers frame the period of August-December 2017 as one of drastic transition for the organization. This period of intense struggle for a permanent legislative fix for Deferred Action for Childhood Arrival (DACA)⁹ recipients as the Trump administration initiated the program's rescission confirmed for many organizers what they already knew; that bargaining with legislators only presents the illusion of a negotiation.

Yet this reckoning marked a new chapter in the organization's history that I attempt to outline here. My pre-graduate school career as an immigrant justice organizer provides me a unique perspective on this transition. I worked at a large Washington, D.C. metropolitan-area nonprofit in the tumultuous 2011–2015 period that saw the announcement of the DACA program and the 2013 struggle for comprehensive immigration reform. This experience, while relatively brief, afforded me a panoramic view of the national movement at the time and its reconfigurations in the present. It also allows me to see how NAKASEC, over time has pivoted away from the structures, strategies, and visions that characterize many other immigrant justice organizations

Illegalized people engaging in projects to help each other thrive is of course nothing new. That such alternative projects would become the primary focus, take place within the structure, and with the financial and logistical support of a large 501(c)(3) nonprofit is, however, somewhat unique. In contrast to the deeply hierarchical structure of many influential immigrant justice organizations,¹⁰ NAKASEC has committed itself to being an organization led primarily by impacted youth. Thus, illegalized NAKASEC organizers have worked with a relatively large degree of independence from older, non-impacted executives in imagining and implementing the organization's campaigns over the past two years. This dynamic has pushed the organization to become less beholden to the respectability politics that can characterize other parts of the movement,¹¹ and to be supportive of innovative, yet risky projects. Finally, due to its bold and attention-grabbing campaigns, and reconceptualizations of "what constitutes winning," NAKASEC has gained strength and visibility as one of the most left-leaning groups amongst the national immigrant justice movement's most influential organizations. When leaders of the major organizations meet in D.C. to discuss political strategies, NAKASEC is consistently amongst those who most strongly refuse compromise, which often calls for trading relief for a select few in exchange for enhanced enforcement and border militarization. In the time since I left the Washington, D.C. immigrant justice world, NAKASEC has gone from being a relatively unknown organization to being a deeply influential player that has helped pushed the movement toward a greater reckoning with racialized intersectionality and away from tempting, yet highly exclusionary compromises.

From July 2017 to August 2019, I conducted 57 interviews, volunteered and helped strategized for, and participated in countless NAKASEC direct actions, planning meetings, community clinics, canvassing sessions, and social events in California, Washington, D.C., Chicago, and northern Virginia. Numerous informal chats over meals, coffee, and long car rides with friends from the organization have also been instrumental in helping me understand their emergent visions for immigrant justice. In what follows I will refer to several of NAKASEC's larger projects over the past two years. Regarding the actions to which I refer below, I participated directly in the 22-day vigil in front of the White House, the extended "Clean" DREAM Act¹² campaign in November and December 2017, and the

2018 Journey2Justice Bike Tour. In summer 2019, I also spent several days living at the Woori Jip housing collective.

As a final note, I want to name the messy tension present here as I, a U.S. citizen and the daughter of an immigrant parent who has nonetheless never had a significant struggle with her legal status, write about immigrant liberation outside the “confines” of state recognition. The potential hypocrisy of characterizing state recognition as “confining” when I know nothing of the confining nature of existing outside state recognition is not lost on me. My intention here is not to create a hierarchy of or pass judgment on various resistance strategies, but rather to appreciate the range of visions and projects illegalized people have for securing their own liberation.

NAKASEC

Founded in Los Angeles in 1994, NAKASEC emerged in the context of two transitions in Korean American political life. First, in exposing the need for greater Korean American engagement in mainstream institutional politics, and in multiracial solidarity work, the 1992 L.A. uprising created opportunities for the 1.5 and second generations to assume leadership over what had been a Korean American political life largely dominated by a first generation, Seoul-linked, ethnic elite¹³ that was focused primarily on protecting co-ethnic entrepreneurial interests.¹⁴ Second, prior to the early 1990s, much progressive and confrontational Korean American activism centered on creating an overseas solidarity movement for Korean peninsular reunification and South Korean democratization. South Korea’s 1988 transition to democracy, combined with the 1992 uprising, created opportunities for progressive activists to focus on Korean American racial justice struggles in the U.S.¹⁵ Along with a cohort of 1.5 and second generation-led organizations to emerge in 1992’s aftermath, NAKASEC rejects narrow notions of Korean ethnic solidarity, and is committed to progressive immigrant rights work and multiracial solidarity building. Today, NAKASEC comprises a national network whose affiliates include Hana Center in Chicago, Korean Resource Center in Los Angeles, and NAKASEC Virginia in Annandale, Virginia. While the network seeks to preserve its connection to South Korean protest culture, and its founding by South Korean student and democratization activists, it is actively seeking to reframe its mission outside of ethnic affiliation so as to organize with and for all immigrants and people of color. This approach reflects a changing reality in which each affiliate organization has come to serve diverse communities, and a recognition of the limitations of ethnic-based justice work motivate this reframing. For example, Hana Center was created in 2017 from a merger between two Chicago-based organizations formerly known Korean American Resource and Cultural Center and Korean American Community Services. In choosing a name for the new organization, Hana Center workers were intentional in leaving “Korean American” out of the title to steer away from an exclusive association with Korean communities. The organization decided on this name change because while “Hana” is a Korean word, it refers literally to the number one, but also “one,” as in a unified whole. It also has meaning in several languages. Southern California’s Korean Resource Center has considered a similar name change and is actively diversifying the ethnic and linguistic capabilities of its staff and its outreach efforts.

Immigrant justice activism constitutes the majority of NAKASEC's work. Due largely to the 1997–98 Asian financial crisis, a 249% increase in undocumented migration from South Korea since 2000 has made Koreans Americans the second fastest growing illegalized Asian American community.¹⁶ These statistics are perhaps even more surprising when one considers that the growth rate of illegalized Asian Americans in general exceeds that of migrants of Mexican and Central American origin.¹⁷ Thus, NAKASEC has invested much of its energy over the past several years in both local and national campaigns to advocate for Asian Americans with precarious legal statuses. Over time, it has become one of the most influential Asian American organizations within the national immigrant rights movement.

NAKASEC organizers and their allies recognize that the DREAM Act would be a game-changer for the hundreds of thousands of individuals who would benefit from it. Yet they are critical of the way the legislation and the rhetoric that surrounds it legitimizes the broader militarized enforcement regime and further criminalizes all non-“Dreamers.” They argue that in the post-9/11 era, negotiating trade-offs between expanded legalization for less politically controversial groups of immigrants (namely, “Dreamers”) in exchange for ramped-up border and internal enforcement, as well as increasing integration of the criminal justice and immigration systems, has been the defining dynamic of the politics of immigration reform. Within this configuration, politicians mobilize promises of pathways to citizenship for limited numbers of “desirable” immigrants as a tool to further criminalize all others. A sinister currency of immigrant deservedness thus undergirds attempts to make political compromises, and various immigrant rights organizations orient themselves along a spectrum of willingness to accept those compromises. As of late, NAKASEC orients itself among those who reject the terms of this bargain. They refuse to equate their humanity with the extent to which they achieve higher levels of education, contribute taxes, emanate or embody “Americanness,” appeal to innocence or are otherwise legible within neoliberal value systems.¹⁸ They charge that calls for piecemeal legalization only strengthen the state's power to adjudicate the value of individual immigrant lives, and thus, that true immigrant liberation thus cannot be found in the extent to which the state is willing to concede to demands for inclusivity. The goal includes accessing immigration papers, but it neither begins nor ends there. I would argue that NAKASEC is better described as an immigrant “justice” organization rather than an immigrant “rights” one. Their visions for liberation include, but also exceed the promises of rights and legalization. They claim that, while immigrant lives might be significantly improved by access to papers, they are not and cannot be exclusively defined by them.

“What is the point of a protest?”

Over the past two years, legislative and judicial ping-pong on the fate of the DACA program has left little cause for celebration in the way of legislative victories.¹⁹ Throughout August–September 2017, NAKASEC protestors camped out 24 hours a day for 22 days in front of the White House to protest the impending rescission of the program. The 22-day period had been designed to start on August 15 in commemoration of the fifth anniversary of the implementation of DACA, and end September 5 when the Trump administration was poised to announce the program's termination. Yet NAKASEC activists returned for all of November and December, living out of a church basement and

flooding Congressional offices daily to push representatives to advocate for a “Clean” DREAM Act. Repeated disappointing and maddening encounters with politicians throughout this time fostered an increasing disillusionment with institutional political engagement among the young activists. Young-Jin, a NAKASEC organizer, grew frustrated in late November 2017 when, in a meeting with 35 illegalized Asian Americans, members of the Congressional Asian Pacific American Caucus (CAPAC) tiptoed their way around making a public statement that they would refuse to vote on an end-of-year spending bill unless it included provisions for a Clean DREAM Act. The hypocrisy grew too much for Young-Jin when, after failing to make such a concrete commitment, CAPAC requested a photo opportunity with the group of young activists. Young-Jin abruptly walked out of the meeting, slamming the door behind him, chanting “No DREAM Act, no government!”

Hyun-Shik also expressed a sense that fighting with legislators over a Clean DREAM Act was a false negotiation in that the very concept of the Dreamer cannot exist without its constitutive foil of the criminalized alien. The Dreamer is a construction that functions only in opposition to an imagined inferior other, and as such no legislation centered on the Dreamer could ever be “clean” enough. Hyun-Shik wrote me an e-mail saying that he didn’t think the community continued to hold much faith in the DREAM Act. This disillusionment pertained not only to the bill’s passage, but also everything it symbolizes. He said:

It is an imperfect bill from the birth so there is no point to argue how perfect its imperfection is ... legislation will always leave people out. I am very pessimistic on eradicating the “good/bad” immigrant narrative both through legislation or any other means. Talking specifically of different versions of DREAM Act, I think it was built upon that narrative (Even for the original inspiration of the bill. e.g., Theresa was a good student, went to college, a good citizen, so she deserves to be our citizen), so I don’t see any version being free of that criticism. I personally think it is time that we leave DREAM Act and CIR [Comprehensive Immigration Reform] behind us. For Pete’s sake, DREAM has been around 18 years! We are seeing a new breed of political force, undocumented leaders, etc., and I don’t think they can be contained by the bills of the past.

For others, a desire to look beyond legislation-based activism emerges from countless experiences with immigration authorities’ arbitrary exercises of power. One organizer became fed-up after enduring several cruel twists of fate in his years-long quest for some sort of status. Fulfilling all DACA requirements except the pre-2007 required entry date, Jared watched with pride, but also silent frustration as his fellow illegalized friends who did qualify for DACA secured Social Security numbers, paid internships, and steady jobs after college. He felt hopeful when in 2014, President Barack Obama announced a new executive order to expand the DACA program by, among other things, extending the entry-date requirement to a point where Jared could qualify.

Yet that hopefulness was short-lived given that in 2016, a 4–4 Supreme Court ruling as to the constitutionality of the new executive order effectively blocked the program’s implementation. Finally, a small change in requirements for a humanitarian-based visa²⁰ made Jared eligible for a long, but eventual pathway to citizenship. However, USCIS sent his paperwork back after discovering a minor clerical error from the pro bono attorney in charge of his case. By the time they received the corrected paperwork, Jared had turned 21, thus aging out of eligibility and once again, losing his shot at status. I was struck by the passivity and emotionlessness with which he related this latest tragedy to me over coffee

one day. Jared no longer seemed to experience this grave disappointment as sensational. He had become convinced that cases like his were not exceptional, but rather expressions of the immigration system functioning exactly as it supposed to. That is, it is a deliberately arbitrary structure designed to reinforce to immigrants at every turn that their fates are beholden to the state. Jared went on to explain to me that these events brought him to question how vulnerable it made him to invest his sense of self and hope for the future in a system that he was increasingly convinced had no regard for him. He would welcome an opportunity for papers, but he would no longer allow himself to be defined by them.

The night that Young-Jin walked out of the CAPAC meeting, we sat facing each other on two fold-out mattresses in a dimly lit church basement in Southeast D.C. The church had offered its basement as a place for some 80 NAKASEC-affiliated activists to stay throughout the course of the action. Some of the college-aged protestors who had to catch a red-eye back to California the following day because they were in the middle of finals huddled together as they studied for their exams. Others sat with their heads peeking out of their sleeping bags, propped up on their elbows and sharing snacks. Some of the older Korean American women who formed part of the DACA parent group sat around doing each other's hair, giving each other massages, and talking excitedly. Their loud laughing peppers the recording of my conversation with Young-Jin. We were reflecting on the last time we were in D.C. for the 22-day vigil. During those 22 days participants would take turns doing eight-hour shifts, standing with signs, dancing, and playing *pungmul*²¹ under the blistering August D.C. sun on the shadeless street in front of the White House. The core constituency of protestors included NAKASEC-affiliated activists from high school teens to grandmas in their seventies. Yet as the days went on, local D.C. residents and tourists joined. There were also some people who, motivated by the protestors' resilience after seeing their videos on their Facebook Live feed, flew themselves across the country to join the action. Young-Jin grinned as he told me that by day 17 of the action, a man experiencing homelessness who had previously objected to NAKASEC setting up the protest's base camp in the park where he slept, came up to Young-Jin, took money out of his shoe and put it in the donation bin. The man said, "I don't know what the fuck you all are doing out here, but it must be important and I'm moved."

Recalling this moment brought Young-Jin to wonder aloud, "What is the point of a protest? Is it only successful if a bunch of press shows up or some politician gives us what we want? If there's no press, should we all just go home?" He went on to express frustration at what he perceived to be a tendency within much mainstream immigrant rights work to bring thousands of people to a big rally for a few hours and then all go home. Such kinds of protest, while indispensable to bringing public attention to the cause, is not for Young-Jin, where the real resistance work is done. That work is done here, in a church basement at 1:00 in the morning, with illegalized people and their loved ones learning how to survive together. Pointing around the room, Young-Jin said, "this is how we build a movement that makes sure no one is left behind . . . not just waiting and seeing how politicians are going to play with our lives."

Young-Jin's comments speak to a frustration expressed by social movement scholars regarding overly rigid perceptions about what constitutes an act of political resistance. Looking at protest, in the words of Susan Bibler Coutin, "as an exception to the normal state of affairs"²² is to miss the everyday processes that constitute how activists come to articulate alternative historical meanings and visions of the future, as well as what the

process of participating in the movement means for participants themselves. Processes of subversion occur not only when activists perform radicalness in political discourse, in front of cameras, or lawmakers. They are moments in which activists articulate ways to *live* radically – to develop ways of consuming, loving, working, and otherwise being in *this* world in ways that are consistent with the *new* worlds they seek to bring into being. In the following sections, I highlight some of the ways that NAKASEC activists are attempting to create these new worlds independently of the state's gaze.

Thinking citizenship otherwise

The experiences of Young-Jin, Hyun-Shik, and Jared indicate a sense that tying immigrant justice exclusively to state recognition leads organizers into a series of inclusionary traps. Elizabeth Povinelli²³ calls “recognition” the primary technique that late liberalism deploys to make maneuvers that ultimately reconstitute it appear as resistance against it. Racial liberalism celebrates difference, but it does so with the incorporative intent of controlling the acceptable parameters of that difference. To refuse²⁴ negotiation with the liberal state is to challenge its hegemony over the incorporation and definition of acceptable difference. Channeling Aiwha Ong's notion that citizenship is “governance through freedom,”²⁵ Monisha Das Gupta has called for a need to expose citizenship as an “organizing principle that constitutes difference”²⁶ and to disrupt “the belief that if only minoritized groups had access to citizenship, their rights would be met.”²⁷ NAKASEC's recent shift away from a Clean Dream Act platform toward what they have called “Citizenship 4 All” ironically speaks to citizenship's limitations when it is understood purely in terms of legal recognition.

NAKASEC decided to call for “Citizenship 4 All” after months-long legislative actions advocating for a permanent resolution for DACA beneficiaries produced endless maddening encounters with legislators, as described above. On the surface, the shift to “Citizenship 4 All” seems to be a merely reconfigured legislative platform aimed at greater inclusivity. In calling for legalization for all 11 million undocumented people in the U.S., 35,000 inter-country adoptees without citizenship, as well as asylum and refugee seekers, it is an attempt to move away from Dreamer rhetoric, albeit one that appears to continue centering legalization. Yet organizers are frank in their admissions that they have little faith that legislators in any foreseeable future would actually consider such sweeping reform. They are also not convinced that legal citizenship resolves immigrant injustice. In their mission statement for the revised platform, NAKASEC argues that by virtue of their systemic marginalization, Black and Native communities may possess citizenship papers but are precluded from enjoying the full benefits the institution ostensibly awards. Thus, the “citizenship” to which they are referring in calling for “Citizenship 4 All” is one that insists on an understanding of the term that does not necessarily preclude legal recognition, but also cannot be bound by it. As Hyun Shik explained,

when Citizenship 4 All first came out, I think everyone in NAKASEC and affiliates thought of citizenship as in like legal status. But now when you talk to people ... it's not just citizenship status anymore. It's like basically a right to live in this society, whether it's health care, security, housing.

Betsy, another NAKASEC organizer confirmed that they are “envisioning a citizenship that’s like not about borders or about like specific aspects of our identity ... but that it’s just about creating a community where we support each other in ways that I don’t think that most Americans understand.” This conceptualization signals a framing that has more to do with full recognition of one’s humanity outside their immigration, socioeconomic, or racialized status. Furthermore, it signals a desired recognition not from the state, but from alternative communities deliberately designed to invert the myriad injustices with which illegalized people must contend daily.

NAKASEC created one such community in the summer of 2018, when organizers completed their 1,700-mile Journey2Justice bike tour from the Canadian border to Mexican border. The bikers stopped in dozens of towns along the way to hold healing sessions, press conferences, and direct actions with local immigrant rights groups. As Xitlalli Alvarez Almendariz and I have described elsewhere,²⁸ the bikers averaged some 70 miles a day, sleeping only in campsites or other donated spaces, sharing showers, and relying only on donations for food, drink, and equipment. Throughout the 36-day journey, the organizers created a veritable counterculture through a series of community agreements,²⁹ practices to ensure the bikers’ safety and self-care, and the opportunity to be in community exclusively with illegalized folks and others who supported them. The Clif bars and peanut butter and jelly sandwiches they reluctantly consumed at one rest stop after another became punchlines of jokes that covertly honored their mutual sacrifice and love/hate relationship with the road. So after several weeks of processed meals, sitting at round tables in a Universalist church community room in Stockton and eating the *galbi jjim* that the *ajummas* from Korean Resource Center had spent all day cooking made for a near-religious experience.

In interviews in the months following the tour, many of the bikers laughed when I asked them what they thought the “point” of their ride was. What was motivating them, as a group, to take on such an immense physical feat? In the immediate aftermath of the tour, riders seemed to be at a loss in explaining why they did what they did. Initially, most framed their answers in terms of what the bike tour *was not*. That is, it was not a sort of political theater meant to attract the attention of legislators and would-be supporters. Yet as I conducted interviews a few months on, it seemed like riders were developing ideas about what the bike tour *was* in hindsight. These emergent conceptualizations revolved around an idea of immigrant justice as access to spaces where illegalized people do not have to be defined by their relationship to documents, or deal with daily intersectional injustices that are compounded by their status. It was through these experiences that they more concretely defined their intentions is calling for “Citizenship 4 All.” This definition is one that challenges the exclusivity of the state’s power to “award” citizenship, its attendant rights and responsibilities, and that such rights and responsibilities accrue to individuals rather than a collective.

In a zine that the bikers created to commemorate the ride, one person shared a short reflection they wrote for each day of the trip. They write on Day 22 that

the impact that I’m seeing is not one discernible to the naked eye. Something not translatable to policy. To create a sanctuary in a world that refuses to grant them one. Why can’t that be considered beautiful and worthy of praise too?

Another rider wrote that the tour brought together people “who were able to see beyond the immediacy of an empty promise,” while yet another included a poem dedicated to her fellow riders:

You held my tears & my broken heart-grief
 Around you, I could breath. I could stand
 [...]
 You helped me make sense of myself.

For several bikers, this sanctuary they created was so sacred that many struggled to transition back to what many described as the “real” world after the tour was over. NAKASEC felt that they had to set up group support calls to help smooth the transition. Mia had a particularly difficult time. After finishing up the tour in San Diego, Mia flew north to see some friends working at major tech companies in San Francisco. Listening to her friends talk about going to the movies, where to eat brunch, or what Mia called “upper-middle-class concerns,” she described feeling like she had entered a parallel universe. She felt overwhelmed by the brusqueness of life “outside,” so ripped from the sense of safety to which she had grown accustomed. She thus cut short her stay with her friends and opted to shelter herself for two weeks at a Buddhist center instead, where she could process what she described as the “uniquely intense” experience she just lived.

Material survival

If illegalized activists turn away from state inclusion as the primary aim of their activism, how are they to survive materially?³⁰ People continue to have needs within the systems they seek to invert – we need shelter, transportation, money, healthcare, and sustenance. Alondra Nelson³¹ highlights Huey Newton’s description of the Black Panther Party’s (BPP) Serve the People programs: “You can’t very well drop out of the system without dropping out of the universe . . . you can contradict the system while you are in it until it is transformed into a new system.”

In addition to the more formal events and campaigns outlined above, some NAKASEC activists are developing projects oriented toward bringing illegalized people together to help each other thrive in the absence of state or other institutional support. In many ways, these projects build upon the legacy of the BPP’s Serve the People programs in that they are undergirded by a philosophy of “survival pending revolution.”³² That is, they are born of an intent to provide illegalized people sustenance, as well as the physical, ideological, and spiritual capacity to undertake broader revolutionary work. As with what preceded them, these projects are also a response to a recognition that citizenship does not guarantee social inclusion.

Still, there is a danger in drawing false equivalences between the conditions that motivated BPP survival programs and those from which NAKASEC activists current experiments emerge. There is also a danger, however, in disconnecting these projects from the historical communities that inspired them. The line between appreciation, connection, and appropriation is always a difficult one to navigate. My intention here is not to establish parallels or hierarchies between the conditions of life that brought or bring the BPP and illegalized activists to maintain such a deep skepticism about the possibilities for liberation within the parameters of rights-based activism that they would strive to take

matters into their own hands. Rather, it is to honor the ways these contemporary activists root their work in historic struggles from which the ability to think resistance otherwise emerge.

Prasert, an undocumented Thai American who worked as a volunteer NAKASEC organizer, suggested starting an illegalized people task-exchange program after learning about the Serve the People programs in one of his ethnic studies classes. He had been inspired by the BPP's attempts to "engender a society in which collective goods were put above economic gain."³³ Prasert suggested that "the way people become undocumented in the first place has a lot to do with capitalism." Why, if illegalized people are excluded from mainstream resources, he wondered, should "we participate in the very systems that screw us over?" He and his friends had thus started to informally "use the natural talents we have to care for each other" in ways that threaten capitalist modes of consumption. Prasert is good at cutting hair but terrible at cooking, so he cuts his friend's hair. The friend getting the haircut makes extra food that he gives to Prasert, which ultimately saves Prasert the money he would have spent at a fast food conglomerate. "Why can't we do this on a larger scale, and bring illegalized people together to support one another?," he asked.

About a year and a half later, some of Prasert's NAKASEC colleagues indeed did start implementing these ideas on a larger scale. They created a housing collective for illegalized people called Woori Jip, or "Our House" in Korean. Given the legal precarity of the individuals who live there, I refrain from identifying the city in which the house is located. The four organizers who founded Woori Jip describe their home as a microcosm of what it looks like when illegalized people find resistance in helping each other amidst the systemic barriers they confront daily. Its intention is to invert the structures that keep illegalized people in a constant state of vulnerability so that they can concentrate on thriving rather than merely surviving. It is a space where illegalized folks mobilize whatever relative privileges they have to mutually uplift each other. For example, only some of the roommates have DACA. DACA affords them access to a Social Security number, which in turn permits a steady paycheck through steady employment. Recognizing that the circumstances that allowed them to qualify for DACA, while their other roommates could not, are entirely arbitrary, those with DACA cover the non-"DACAmended" roommate's portion of the rent until the latter is able to access an income to pay it back. In this vein, the house also operates through a total socialization of resources. Unlike conventional roommate situations where the logic of private property manifests in, say, every set of initials written in Sharpie on every peanut butter or yogurt lid, they buy all food and household supplies collectively. Extending the logic that individual burdens should be shouldered collectively, both male- and female-identified roommates contribute equally to the purchase of female hygiene products. Further, each roommate pays the same amount of rent regardless of the size of their room. This arrangement includes one roommate who sleeps on a straw mat in the living room that he diligently folds up and puts away upon waking every morning. Most significantly, they hold monthly family meetings in which each roommate fully details their current financial situation. If one roommate is having a lucrative month and another is struggling, the former will pay a greater portion of household expenses that month. Further, Woori Jip serves as a refuge for any period of time to all illegalized people who are struggling with housing.

Woori Jip's founders believe that true solidarity with one another means having to relinquish one's own "privileges" and challenging the logic that one's circumstances are purely a product of their own making. Their practices are material manifestations of

a philosophy that stands in deep contrast to the individualism that undergirds the Dreamer narrative. The roommates are devising ways to implement these practices on a larger scale. Experimenting with urban farming and vermicompost methods, they seek to find ways to feed themselves and the guests that flow through the house. They also seek to use the home as an educational center where illegalized people can access opportunities usually denied to them. Drawing from a holistic perspective, these educational experiences would include financial literacy workshops and self-care workouts. Finally, while the roommates recognize that while they can challenge individualism to an extent, they cannot exist entirely outside of capitalist structures. They thus seek to establish a fully illegalized people-run business (one idea includes selling *banchan* at local farmer's markets) that will allow them to collectively save to buy their own home. One roommate explained that "once we are owners we will be able to dictate how we use the space. But to the degree that we're renters then we'll always be subjected to the owners' rules."

Thinking liberation otherwise

From where do we derive the audacity to advocate for this new America? A cursory glance at the United States's past reveals that the land which we inhabit does not rightfully belong to those who have historically had the power and privilege to define citizenship in this nation ... We must denounce the legislative proposals that seek to divide our communities by favoring one over the other and instead offer a new vision that will revolutionize contemporary definitions of citizenship. Today, much of the dialogue on citizenship revolves around the "legal status" that supposedly legitimizes a human being's existence in this country. Our campaign acknowledges that legal status for all undocumented people can and will significantly improve their lives. However, our campaign poses greater demands because we recognize that there is much more to citizenship than people's statuses.

– NAKASEC's Journey2Justice Manifesto

In this article, I have attempted to explore through NAKASEC's activism what it looks like when immigrant justice work is not exclusively tied to inclusionary, rights-based projects. While the organization has come to conceptualize immigrant liberation as divorced from legal status, they do not entirely refuse participation in the formal political sphere. Organizers continue to issue demands to the state, and protest for and against certain legislative proposals. They engage in voter registration campaigns, go to Congressional meetings, and urge people to call their representatives. They do not deny the very real benefits that acquiring "legal status" would accrue to illegalized people, but, as they express in the manifesto above, such status does not "legitimize a human being's existence in this country."

Radical activists are doubly bound by the imperative to survive within and make demands legible within prevailing paradigms and material structures, on the one hand, and to work toward subverting those structures, on the other. Is it possible to use the law to dismantle the racialized, neoliberal, imperialist, classed, gendered logics on which the law is based? Is engaging with institutional electoral politics a necessary stepping stone to imploding political systems that rely on suppressing some voices to uplift others? Is it possible to depend on financial resources provided by capitalist structures while seeking to dismantle them?³⁴ Radical activists thus exist in a constant state of tension in which they must, in Audra Simpson's words, "stop a story that is always being told."³⁵

As NAKASEC organizers devise projects to think liberation otherwise, while also finding ways to survive, they operate in the range of what Kim Fortun has called the “middle voice.” The middle voice describes the way activists navigate the opposing logics of imagining within and without of the immediate, of finding temporary repose in dominant ways of knowing and being while never fully finding rest in them. Fortun writes that “the middle voice ... is a way of speaking that builds in awareness that the system that one critiques also operates within the critique.”³⁶ It is a voice that is fluent in the languages of law, bureaucracy, and categorization, insufficient as they are to represent the completeness and messiness of life. But it also knows how implicated these languages are in the very hegemonies against which activists fight. Activism requires a “demand for words that upheld entrenched regimes of power, alongside demands for words that disassemble – highlighted in every move to secure justice within the law, which works by discounting what cannot be translated into constitutional equivalencies.”³⁷ To negotiate for legislative reform is to uphold these entrenched regimes of power, but to formulate the kind of alternative projects highlighted above is to challenge them. To operate in the middle voice, then, is to know that there is no such thing as a “purely counterhegemonic act.”³⁸ It is knowing that working the “unruly edges”³⁹ of power at times demands actions that are ideologically incompatible with one another, and that such imperfection does not render those actions meaningless. It is refraining from analyses of activism cast in totalizing narratives of being accommodationist or radical, and refusing to disregard the former as a product of false consciousness.

Notes

1. See, among others, Monisha Das Gupta, *Unruly Immigrants: Rights, Activism and South Asian Transnational Politics in the United States* (Durham, NC: Duke University Press, 2006); INCITE!, *The Revolution Will Not Be Funded: Beyond the Non-Profit Industrial Complex* (Durham, NC: Duke University Press, 2017); Eric Tang, *Unsettled: Cambodian Refugees in the New York City Hyperghetto* (Philadelphia: Temple University Press, 2015); and Audra Simpson, *Mohawk Interruptus: Political Life Across the Borders of Settler States* (Durham, NC: Duke University Press, 2014).
2. Eric Tang, “Why Asian Americans Need A New Politics of Dissent,” in *Asian American Matters*, ed. Russell C. Leong (New York: Asian American/Asian Research Institute, 2017), 39.
3. Tang, *Unsettled*, 2014.
4. This term emerges from several failed attempts since 2001 to pass federal legislation known as the Development, Relief, and Education for Alien Minors (DREAM) act. Different versions of the bill have been put before Congress, but essentially it would provide a path to legalization for undocumented youth who came to the U.S. before a certain age, who have no criminal record, and who have pursued at least secondary education and/or other professional pursuits. Typically, efforts to make the Dream Act more palatable to conservative legislators have thus been accompanied by proposals to enhance border security and interior enforcement capacity. In political discourse the term “Dreamers” connotes youth who fit this profile, and because they were “brought here by their parents through no fault of their own” are presumably more innocent than other migrants who do not fit this profile. Many immigrant rights activists thus reject the term “Dreamer,” demanding only a “clean” Dream Act, or one that does not come in exchange for ramped up border militarization and enforcement.
5. My use of the word “illegalized” instead of “undocumented” is an intentional one. See Joel Sati, “Noncitizenship and the Case for Illegalized Persons,” *The Berkeley Blog*, January 25, 2017, <https://blogs.berkeley.edu/2017/01/24/noncitizenship-and-the-case-for-illegalized-persons/>; and Elizabeth

Hanna Rubio and Xitlalli Alvarez Almendariz, “Refusing ‘Undocumented’: Imagining Survival Beyond the Gift of Papers,” *Cultural Anthropology Fieldsights* (blog), January 17, 2019, <https://culanth.org/fieldsights/refusing-undocumented-imagining-survival-beyond-the-gift-of-papers>.

These blogs provide the sentiment as to why some people without legal status in the United States prefer the term “illegalized” to what has become the taken-for-granted use of “undocumented.” I maintain the term “undocumented” where interlocutors referred to themselves or others with that term.

6. Amalia Pallares, *Family Activism: Immigrant Struggles and the Politics of Noncitizenship* (New Brunswick, NJ: Rutgers University Press, 2014).
7. Susan Bibler Coutin, *The Culture of Protest: Religious Activism and the U.S. Sanctuary Movement* (Boulder, CO: Westview Press, 1993); Max Haiven and Alex Khasnabish, *The Radical Imagination: Social Movement Research in the Age of Austerity* (London: Zed Books, 2014).
8. By “formal political processes,” I include both institutional civic engagement (i.e., voter registration, meeting with elected officials) and disruptive protest (marches, rallies, civil disobedience) that nonetheless centers in the last instance on a demand to the state.
9. Announced in 2012 as an Obama Administration Executive Action, DACA provides temporary reprieve from deportation for young undocumented immigrants who meet a series of requirements.
10. Walter Nicholls, *The DREAMers: How the Undocumented Youth Movement Transformed the Immigrant Rights Debate* (Stanford, CA: Stanford University Press, 2013).
11. NAKASEC prides itself on being an organization that is led by illegalized youth. Thus, as a rule, the leadership structure supports illegalized organizers in undertaking risky campaigns, abruptly pivoting strategy, and staging spontaneous and disruptive confrontations when they believe an injustice is being done. This is the case even when such actions potentially jeopardize the organization’s relationships with key legislators and other movement allies. For example, the NAKASEC leadership supported their impacted youth when the latter staged a spontaneous protest at the 2019 National Immigrant Integration Conference. The youth rallied against the conference’s moderate integrationist agenda by running up to the stage to paste “Abolish ICE” signs on the podiums where unsuspecting elected officials were speaking. They also pasted such signs all along the conference hall walls. The conference organizers were outraged, but NAKASEC’s leadership refused to apologize for or invalidate the youth’s actions.
12. This term emerges from several failed attempts since 2001 to pass federal legislation known as the Development, Relief, and Education for Alien Minors (DREAM) act. Different versions of the bill have been put before Congress, but essentially, it would provide a path to legalization for undocumented youth who came to the U.S. before a certain age, who have no criminal record, and who have pursued at least secondary education and/or other professional pursuits. Typically, efforts make the Dream Act more palatable to conservative legislators have thus been accompanied by proposals to enhance border security and interior enforcement capacity. In political discourse the term “Dreamers” connotes youth who fit this profile, and because they were “brought here by their parents through no fault of their own” are presumably more innocent than other migrants who do not fit this profile. Many immigrant rights activists thus reject the term “Dreamer,” demanding only a “clean” DREAM Act, or one that does not come in exchange for ramped up border militarization and enforcement.
13. For more on intergenerational struggles within Korean American political life, see: Angie Y. Chung, *Legacies of Struggle: Conflict and Cooperation in Korean American Politics* (Stanford, CA: Stanford University Press, 2007).
14. For more on Korean American collective entrepreneurial action, see, among others: Pyong Gap Min, *Caught in the Middle: Korean Communities in New York and Los Angeles* (Berkeley: University of California Press, 1996); Kyeyoung Park, *The Korean American Dream: Immigrants and Small Business in New York City* (Ithaca, NY: Cornell University Press,

- 1997); and In-Jin Yoon, *On My Own: Korean Business and Race Relations in America* (Chicago: University of Chicago Press, 1997).
15. Nancy Abelman and John Lie, *Blue Dreams: Korean Americans and the Los Angeles Riots* (Cambridge, MA: Harvard University Press, 1995).
 16. See Migration Policy Institute's report: Marc R. Rosenblum and Ariel G. Ruiz Soto, *An Analysis of Unauthorized Immigrants in the United States by Country and Region of Birth* (2015).
 17. Ibid.
 18. The following works, among others, explore in greater detail the politics of representation within immigrant justice activism: Peter Nyers, "Abject Cosmopolitanism: The Politics of Protection in the Anti-Deportation Movement," in *The Deportation Regime: Sovereignty, Space and the Freedom of Movement*, ed. Nicholas DeGenova and Nathalie Peutz (Durham, NC: Duke University Press, 2010), 413–41; Walter Nicholls, *The DREAMers: How the Undocumented Youth Movement Transformed the Immigrant Rights Debate* (Stanford University Press, 2013); Lindsay Perez-Huber, "Constructing 'Deservingness': DREAMers and Central American Unaccompanied Children in the National Immigration Debate," *Association of Mexican American Educators Journal* 9, no. 3 (2015): 22–34.
 19. Several lawsuits have been raised to challenge the Trump administration's September 2017 announcement that it would be terminating the DACA program. The fate of the program will be decided by the Supreme Court, most likely in the fall or winter of 2019. As of the writing of this paper, those who had DACA prior to the program's rescission may continue to apply for renewal, but no new applicants are eligible.
 20. I am intentionally being vague here to protect the individual's ongoing legal drama.
 21. A traditional Korean drumming practice that has been a central piece of South Korean protest culture.
 22. Coutin, *The Culture of Protest*, 4.
 23. Elizabeth Povinelli, *Economies of Abandonment: Social Belonging and Endurance in Late Liberalism* (Durham, NC: Duke University Press, 2011).
 24. Simpson, *Mohawk Interruptus*.
 25. Aiwha Ong, *Buddha Is Hiding: Refugees, Citizenship, and the New America* (Berkeley: University of California Press, 2003.)
 26. Das Gupta, *Unruly Immigrants*, 4.
 27. Ibid., 257.
 28. Rubio and Alvarez, "Refusing 'Undocumented'".
 29. These included restating one's gender pronouns twice daily; prioritizing the voices of illegalized people, female-identified people, and people of color; respecting a culture of affirmative consent; observing Native land acknowledgement practices at every stop.
 30. My sincerest gratitude to Yusef Omewale of the Southern California Library and Dr. Damien Sojoyner for pushing me to think in this direction.
 31. Alondra Nelson, *Body and Soul: The Black Panther Party and the Fight Against Medical Discrimination* (Minneapolis: University of Minnesota Press, 2011), 63.
 32. David Hilliard, *The Black Panther Party: Service to the People Programs* (Albuquerque: University of New Mexico Press, 2008).
 33. Nelson, *Body and Soul*, 184.
 34. INCITE!, *The Revolution Will Not Be Funded*.
 35. Simpson, *Mohawk Interruptus*, 177.
 36. Kim Fortun, *Advocacy After Bhopal: Environmentalism, Disaster, New Global Orders* (Chicago: University of Chicago Press, 2001), 37–8.
 37. Ibid., 53.
 38. Coutin, *The Culture of Protest*, 228.
 39. Anna Lowenhaupt Tsing, *The Mushroom at the End of the World: On the Possibility of Life in Capitalist Ruin* (Princeton, NJ: Princeton University Press, 2015).

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